

proprietors against a decision to revoke the patent as a request that the decision be set aside in its entirety, even though there had been auxiliary requests before the opposition division (see T 358/08). Similarly, in appeals against the rejection of the opposition the appeal of the opponent was construed as a request to set aside the decision under appeal and revoke the patent (see T 9/08, T 183/12 and T 256/13).

In T 620/13 the board pointed out that the notice of appeal must contain an unambiguous, clear and, most of all, explicit statement, which is recognisable as a legal statement, concerning both the identification of the impugned decision and the subject of the appeal (see also J 19/90). It was immaterial that the registrar was able to establish which decision was appealed (see also T 551/15). The board conceded that the requisite request defining the subject the appeal could be implicit. However, on a correct reading of T 358/08, what might be "implicit" was that part of the request which indicates whether the decision is to be set aside in whole or only in part. Decision T 358/08 lent no authority to the argument that there need not be any request at all. The appeal was rejected as inadmissible.

– Case law on Rule 64(b) EPC 1973

The decisions below concern the application of R. 64(b) EPC 1973, in particular the requirement concerning the extent to which amendment or cancellation of the decision was requested in the notice of appeal. (This request, reworded, now forms part of the statement of grounds; R. 99(2) EPC).

It was sufficient to fulfil the requirements of R. 64(b) EPC 1973 if the extent of the request made on appeal could be inferred interpreting the notice of appeal in an objective way (T 85/88, see also e.g. T 32/81, OJ 1982, 225; T 7/81, OJ 1983, 98; T 1/88, T 533/93, T 141/95 and T 308/97).

T 631/91, T 727/91 and T 273/92 confirmed the principle that the appeal's scope could be ascertained from the appellant's overall submissions if the request filed in the appeal proceedings did not make this clear. Since no indication was made to the contrary in the appellant's submissions, the board of appeal assumed that he wished to file a request in the appeal proceedings along the same lines as that filed in the opposition proceedings (see also T 925/91, OJ 1995, 469; T 194/90 and T 281/95).

The wording "... we hereby file notice of appeal to the decision ..." was construed in T 632/91 as a request to set aside entirely the decision under appeal and to grant a patent on the basis of the documents of the European patent application to which the decision under appeal referred. This was followed in T 49/99 and T 1785/06. See also T 9/08 for a corresponding application under R. 99(2) EPC.

If the only ruling in an opposition division decision was that the patent was revoked, a statement by the patent proprietor that he was appealing against the decision was invariably tantamount to his stating that he wished and hence requested that the decision be set aside in its entirety, because setting aside had to be unitary. Hence the content of the notice of appeal was what R. 64(b) EPC 1973 demanded as one of its requirements

for an admissible appeal, i.e. a statement identifying the extent to which cancellation of the decision was requested (T 407/02). This has also been applied under R. 99 EPC; see T 912/08, T 624/09, T 689/09 and T 1188/09.

However, where the decision under appeal related to more than one different legal issue, the statement identifying the extent of the appeal as prescribed by R. 64(b) EPC 1973 had to make it clear which issue(s) of the decision were also subjects of the appeal (T 420/03). As the notice of appeal was completely silent on the apportionment of costs and there was nothing which indicated that the decision should be set aside in its entirety, this issue was not within the extent of the appeal.

d) Rule 99(3) EPC

Under R. 99(3) EPC Part III of the Implementing Regulations applies *mutatis mutandis* to the notice of appeal, the statement of grounds and the documents filed in appeal proceedings.

R. 99(3) and 41(2)(h) EPC together make it clear that a notice of appeal must be signed by the appellant or his representative, but not that every single document in the notice has to be signed or that the signature has to be appended at a particular place or page. In T 783/08, the debit order had been part of the notice of appeal, so the board held that the signature on it fulfilled the EPC requirements in question. The appeal had therefore been validly filed.

2.5.3 Appeal filed within the time limit

Art. 108, first sentence, EPC requires notice of appeal to be filed at the EPO within two months of notification of the decision being contested.

a) Notification issues

In T 389/86 (OJ 1988, 87) the board stated that an appeal which was filed after pronouncement of a decision in oral proceedings but **before notification** of the decision duly substantiated in writing complied with the time limit pursuant to Art. 108, first sentence, EPC 1973. See also T 427/99, T 1125/07 and T 1431/12.

According to T 1281/01 the legal fiction that the decision (under appeal) had been delivered on the tenth day following its posting (R. 78(2) EPC 1973) did not apply when it had actually been delivered to a previously authorised representative **after** she had notified the EPO that the file had been transferred to another representative. Pursuant to R. 82 EPC 1973, the decision under appeal was deemed to have been notified on the date it was received by the authorised representative and the appeal had thus been filed in due time.

b) Languages

Where the translation of the notice of appeal in an **official language** of the EPO was not filed in due time, the notice was deemed not to have been received according to Art. 14(5) EPC 1973 and the appeal not to have been filed (T 323/87, OJ 1989, 343; see also T 126/04).

Where the notice of appeal was filed in a non-official language by a company not entitled to benefit from the provisions of Art. 14(4) EPC 1973 and a translation into an official language was filed on the same day, the notice of appeal was nonetheless deemed not to have been filed. In view of G 6/91 (OJ 1992, 491), where the translation was filed at the same time as the original, the EPO could not take it as the "official" notice of appeal and ignore the original as superfluous. As further stated in G 6/91 "a translation cannot become the original; whatever the date on which it is filed it remains a translation, with all ensuing legal consequences, including the possibility of correction to bring it into conformity with the original" (T 1152/05 and T 41/09). The residence or principal place of business of the professional representative used was irrelevant (T 149/85, OJ 1986, 103 and T 41/09).

In T 2133/10 the board referred to G 6/91 that a party who wanted to benefit from a fee reduction under R. 6(3) EPC must file the translation "no earlier than simultaneously" with the original. From a contextual reading of these separate parts the board inferred that the terms "at the same time" and "simultaneously" were used synonymously and were meant at least to cover the case at hand, i.e. where the original and translation were filed together in a single filing on the same date. Thus, if the original and translation are filed together a fee reduction under R. 6(3) EPC should apply.

c) Misleading decisions of the department of first instance

Where an appellant was **misled** by the EPO into thinking that the decision issued was only a draft that will be replaced by a second version, it is sufficient that the appeal was filed within the prescribed time limit as counted from notification of the second written decision (T 830/03).

Where the opposition division misleadingly issued two decisions, it sufficed if the statement of grounds of appeal was filed within the time limit applicable to the second decision, even if it was outside the time limit for the first decision (T 993/06).

In T 124/93 the parties were misled by the re-dating of the decision by the opposition division. Following the principle of good faith governing the relationship between the EPO and the parties acting before it, their submissions received after expiration of the normal terms were considered to have been made in due time (see e.g. T 124/93, T 1176/00 and T 1694/12 in comparable cases).

2.5.4 Payment of appeal fee

a) Notice of appeal not filed

It is established case law that, if no written notice of appeal has been filed within the time limit but only the appeal fee has been paid in time, the mere payment does not constitute a valid means of lodging an appeal (T 551/15, T 2609/18). For a notice of appeal to be valid it must at least contain an explicit declaration of the wish to contest a particular decision by means of an appeal (T 371/92, OJ 1995, 324; T 767/18). It clearly follows from the wording of Art. 108 EPC that filing notice of appeal and payment of the appeal fee are two distinct requirements, each of which has to be fulfilled separately (see T 778/00, OJ 2001, 554; T 551/15).

The legislative amendment under the EPC 2000 whereby R. 99(1) EPC lists the items making up the obligatory content of the notice of appeal removed any doubt there might have been as to the fact that the mere payment of the appeal fee cannot replace the notice of appeal (T 1943/09, see also T 861/12).

Payment of the appeal fee may at the most imply that the appellant intends to file an appeal because, once an appeal fee is paid, it remains free to decide whether or not it wishes to lodge an appeal (T 371/92, T 778/00, T 767/18). The party is still left the choice of whether, or at what point in time, to file notice of appeal as the necessary second act for an appeal to come into existence (T 551/15).

It was established very early on in the boards' case law that paying an appeal fee is not enough on its own for an appeal to be validly filed (J 19/90). The board stated that this applied even if the object of the payment was indicated as being a "fee for appeal" relating to an identified patent application and the form for payment of fees and costs was used. This was confirmed in T 371/92 (OJ 1995, 324), T 445/98, T 514/05 (OJ 2006, 526) and T 778/00 (OJ 2001, 554), where the board also added that the failure to indicate the provisions of R. 65 EPC 1973 in the annex to the communication dealing with the possibility of appeal did not make this incomplete or misleading. This applies equally to inter partes proceedings (T 1926/09); it is in the public interest in both ex parte and inter partes proceedings to be informed with certainty about the applicant's intention of challenging a first-instance decision. See also T 1946/15. T 275/86 is an exception.

In T 595/11 the board held that fee payment is not an issue of admissibility of the appeal, but rather a precondition for the very existence of the appeal, i.e. its deemed filing. If the appeal fee is not paid, the appeal need not be examined at all for admissibility and even less on its merits.

b) Payment of only one appeal fee

The Legal Board in J 1/16 wrote in its catchword: "If the Legal Division has issued a single decision with rulings on the fate of more than one set of patent grant proceedings, it is

legitimate to file a single appeal against that decision and to pay only one appeal fee for it."

c) Reduced fee for appeal filed by a natural person or an entity

Under Art. 1(4) of the decision of the Administrative Council of 13 December 2017 amending Articles 2 and 14 RFees (CA/D 17/17, OJ 2018, A4), Art. 2(1), item 11, RFees was reworded to provide that the persons and entities listed in R. 6(4) and (5) EPC (small and medium-sized enterprises, natural persons or non-profit organisations, universities or public research organisations) need only pay a reduced appeal fee rather than the full fee. The notice from the EPO dated 18 December 2017 (OJ 2018, A5) contains further details on claiming entitlement to the reduced appeal fee. Its point 3 stipulates that appellants wishing to benefit from the reduced fee for appeal must expressly declare that they are a natural person or an entity covered by R. 6(4) EPC. Under point 4, the declaration must be filed at the latest by the time of payment of the reduced fee for appeal. Point 11 states that if the reduced fee is paid but no declaration is submitted, the notice of appeal may be deemed not to have been filed or the appeal may be considered inadmissible.

In J 8/18 the Legal Board noted that an entity within the meaning of R. 6(4) and (5) EPC was a small or medium-sized enterprise (SME) as defined by the European Commission Recommendation 2003/361/EC mentioned in R. 6(5) EPC. The fact that the appellant was an enterprise that had its principal place of business in China did not mean that it could not benefit from the lower appeal fee.

In the cases reported below, the appellants had paid only the reduced appeal fee within the time limit for appeal, despite the criteria for a reduction not being met or being disputed. The question was thus whether the appeals were to be deemed not to have been filed for failure to pay the required amount of the appeal fee (Art. 108, sentence 2, EPC; G 1/18, OJ 2020, A26). However, see also T 1474/19.

– Declaration of entitlement to reduced appeal fee

In T 1060/19 the board noted that Council Decision CA/D 17/17 did not require a declaration according to points 3 and 4 of the Notice. The board nevertheless assumed *arguendo* that the provisions of the Notice that were pertinent to the case in hand were binding. From point 11 of the Notice it followed that point 4 must be read as meaning that "it is strongly recommended that" the declaration be filed together with the payment. The board stated that the declaration of entitlement to benefit from a reduced fee for appeal mentioned in the notice from the EPO (OJ 2018, A5) could be filed until the end of the appeal period, despite the wording of point 4, last sentence, of the Notice, which must be reconciled with the meaning of point 11 of the Notice.

In T 225/19, the board followed decision T 1060/19, in which it was held that there was no legal basis for determining whether the fiction of non-filing applied to an appeal for which a reduced appeal fee had been paid according to whether or not a declaration complying with points 3 and 4 of the notice had been submitted. Council decision CA/D 17/17 and